

See also: Early legal codes 18–19 ■ Trial by ordeal and combat 52–53 ■ Gratian's *Decretum* 60–63 ■ Magna Carta 66–71 ■ The trial of Charles I 96–97 ■ The Glorious Revolution and the English Bill of Rights 102–103



Trial by cold water, shown here in the 9th-century *Codex Lambacensis*, a manuscript of church rules, involved dropping the accused into a pond, lake, or river. If he sank, he was innocent.

a first step was to restrict the Church courts' ability to punish the clergy. Henry then held a council at Clarendon Palace, Wiltshire, in 1166. The resulting series of laws, called the Assize of Clarendon, ordered "justices in eyre" (justices traveling periodic circuits) to take royal justice out of London to the provinces.

Visits by justices in eyre had begun under Henry I (r. 1100–1135) but had long since fallen into disuse. The Assize of Clarendon added a new condition: 12 free men from each "hundred" (land large enough to support 100 households) or four from each "vill" (part of a hundred and roughly equivalent to a village) were to sit on a jury of presentment.

The role of jurors

In a jury of presentment, the jurors had to report, under oath, to the justices on local suspects for the most serious crimes—murder, rape, and theft. Jurors did not have to decide on a suspect's guilt: if the person had been apprehended committing the crime, his or her guilt could be presumed.

The Assize of Clarendon had also replaced the previous practice of compurgation, by which the accused could prove innocence by producing a sufficient number of witnesses to swear to it. Trial by cold water now became the prime legal process of proof in criminal trials; it had earlier been used only on lower classes. Those found guilty by the ordeal faced a fine, confiscation of property, and the amputation of a foot; even those found innocent could be exiled if they were of ill repute. Large numbers of accused simply fled rather than face the ordeal, but their property could still be seized.

The Assize of Northampton in 1176 added arson and forgery to offenses to be dealt with by justices in eyre. Penalties became harsher, with the guilty suffering amputation of a hand as well as a foot.

Evolution of the jury

When the Fourth Lateran Council (a Roman Catholic synod in Rome) in 1215 forbade clerics from taking part in trials by ordeal, such trials were discounted as a practical

method of determining guilt. Juries were now asked to judge whether defendants were innocent or guilty. This new role created a conflict of interest with the role of a jury of presentment, so in 1353, a statute of Edward III forbade a person from sitting on both forms of jury.

As well as the grand assizes (courts) set up by the Assize of Clarendon, petty assizes had also evolved to deal with special cases such as land disputes—they had juries of 12 men. Other measures followed, such as Clause 39 of the 1215 Magna Carta, which forbade the seizure of a free man's land without judgment by his peers.

The use of juries, begun by the Assize of Clarendon, gradually extended until trial by jury became established and a hallmark of the British legal tradition. Henry's reforms also laid the basis for common law (law applied to all). ■

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The lord king wills that those who . . . be absolved by the law, if they have been of the worst repute . . . shall abjure the king's lands.

The Assize of Clarendon

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